

26STCV08179 26STCV08179

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Case Number: 26STCV08179 Hearing Date: July 30, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

30, 2026 TRIAL DATE: N/A

CASE: James

Tarrant v. Live Nation Worldwide, Inc., et al.

CASE NO.: 26STCV08179

DEMURRER

I. BACKGROUND

On

September 12, 2023, Plaintiff James Tarrant was hired by Defendant Live Nation Worldwide, Inc. (Live Nation) as a security person at the Hollywood Palladium venue. Beginning on October 14, 2023, Plaintiff alleges a female co-worker, a person only identified as "Stream," began making unwanted sexual advances and contact. Plaintiff complained to a supervisor, and alleges a retaliatory response as a result of being both the complaint and being Jewish.

Plaintiff

was terminated on June 2, 2025. Plaintiff alleges interference with the submission of an intended workers' compensation claim.

On February

6, 2026, Plaintiffs filed a 16 cause of action complaint for 1. Harassment in Violation of the FEHA – Govt. Code § 12940 et seq.; 2. Discrimination in Violation of the FEHA – Govt. Code § 12940 et seq.; 3. Retaliation in Violation of the FEHA – Govt. Code § 12940 Et Seq.; 4. Failure to Engage in the Interactive Process in Violation of the FEHA – Govt. Code § 12940 et seq.; 5. Failure to Prevent Harassment Discrimination and/or Retaliation in Violation of the FEHA – Cal. Govt. Code § 12940 Et Seq.; 6. Retaliation in Violation of Cal. Labor Code § 1102.5; 7. Retaliation In Violation of Cal. Labor Code § 6310 8. Wrongful Termination in Violation of Public Policy; 9. Sexual Battery – Civil Code § 1708.5; 10. Battery; 11. Assault; 12. Gender Violence – Civ. Code § 52.4; 13. Intentional Infliction of Emotional Distress; 14. Negligent Infliction of Emotional Distress; 15. Negligent Training, Supervision, And Retention; and 16. Unfair Competition in Violation of Business and Professions Code § 17200.

II. LEGAL STANDARD

“[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khouri v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616; Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139 “[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend.]

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108

Cal.App.4th 1028, 1037 [“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

III. DISCUSSION

Defendant Live Nation submits a demurer to the tenth, eleventh, twelfth, thirteenth, fourteenth, and fifteenth causes of action for Battery, Assault, Gender Violence – Civ. Code § 52.4, Intentional Infliction of Emotional Distress, Negligent Infliction of Emotional Distress, and Negligent Training, Supervision, And Retention, on grounds of exclusion under the Workers’ Compensation Act. Live Nation also submits a general challenge on the basis of uncertainty.

Plaintiff in opposition contends the challenged claims arise from the same emotional distress raised in the unchallenged employment-based causes of action, and therefore remain outside the scope of Workers’ Compensation. The demurrer is untimely; Plaintiff denies any extension. Live Nation failed to sufficiently meet and confer. Plaintiff alternatively requests leave to amend.

Live Nation in reply maintains the demurrer is timely and the meet and confer sufficient. Live Nation reiterates the Workers’ Compensation preclusion.

Timing and Meet and Confer

The proof of service indicates personal service on the

agent for service on March 30, 2026. The demurrer was not filed until June 3, 2026—92 days after service. Live Nation references an agreed upon extension by Plaintiff to file an answer only, which Live Nation instead elected to file a demurrer. [Declaration of Lilit Vardanian, ¶¶ 3-4, Ex. B-C.] The court in its discretion finds the demurrer timely notwithstanding the unilateral position of Plaintiff conditioning the extension on the filing of an answer only. (Code Civ. Proc., § 437, subd. (a)(1).)

Given the shortened period between assignment by Live Nation to counsel, and the extension to June 3, 2026, the meet and confer was structurally curtailed. The meet and confer while lacking in substance in no way justifies a continuance of the demurrer given the disagreement in the email exchanges and fully briefed positions. [Vardanian Decl., ¶¶ 5-8, Ex. D-G] The court cannot overrule a demurrer due to an insufficient meet and confer. (Code Civ. Proc., § 430.41, subd. (a)(4).)

Workers'
Compensation Preclusion

Injury claims are subject to the exclusive provisions of the Workers' Compensation statutory provisions, where the injury to the employee occurs as a result of a "service growing out of and incidental" to employment, and the employee is "acting within the course" of employment. (Lab. Code, § 3600, subd. (a)(2); *Charles J. Vacanti, M.D., Inc. v. State Comp. Ins. Fund* (2001) 24 Cal.4th 800, 813.) The injury must cause a disability and/or require medical attention. (*Gomez v. Acquistapace* (1996) 50 Cal.App.4th 740, 748.) "The employee is afforded relatively swift and certain payment of benefits to cure or relieve the effects of industrial injury without having to prove fault but, in exchange, gives up the wider range of damages potentially available in tort." (*Fermino v. Fedco, Inc.* (1994) 7 Cal.4th 701, 708; *Shoemaker v. Myers* (1990) 52 Cal.3d 1, 16.) The exclusive remedies may not apply where "the employer...stepped out of their proper roles." (*Shoemaker v. Myers*, supra, 52 Cal.3d at p. 16.)

All
challenged damages arise from emotional distress caused by the unwelcomed advances of "Stream" and the response of management.

10th Cause of Action Battery

11th Cause of Action: Assault

12th Cause of Action: Gender Violence – Civ. Code § 52.4

Live

Nation contends preemption based on insufficient allegations of ratification of any and all wrongful conduct by management. Plaintiff maintains the complaint sufficiently articulates ratification.

“The Iverson court recognized that the prohibition against imposing vicarious liability on an employer does not apply when there was ‘positive misconduct’ by the employer such as when the employer ‘ratified’ the tortious conduct of its employee and thereby became ‘liable for the employee’s wrongful conduct as a joint participant.’” (Fretland v. County of Humboldt (1999) 69 Cal.App.4th 1478, 1489 accord Iverson v. Atlas Pacific Engineering (1983) 143 Cal.App.3d 219, 228.)

For

purposes of a demurrer, the complaint sufficiently articulates ratification, and therefore a basis of exemption. [Comp., ¶¶ 13-15, 19-24] Any factual distinctions are both beyond the scope of the demurrer and otherwise resolved in further discovery. “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 616; Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139 [“[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend.]

The demurrer is overruled.

13th Cause of Action: Intentional Infliction of Emotional Distress

14th Cause of Action: Negligent Infliction of Emotional

Distress

Live Nation

acknowledges the potential for exclusion on grounds of emotional distress, but maintains insufficiently pled “outrageous conduct.” Plaintiff counters that emotional distress is sufficiently pled.

Emotional

distress in general may be subject to workers’ compensation preclusion, but claims of emotional distress arising from discriminatory practices or conduct in violation of public policy remains outside preclusion defenses. (Miklosy v. Regents of University of California (2008) 44 Cal.4th 876, 902; Livitsanos v. Superior Court (1992) 2 Cal.4th 744, 754, 756; Cole v. Fair Oaks Fire Protection Dist. (1987) 43 Cal.3d 148, 160; Yau v. Santa Margarita Ford, Inc. (2014) 229 Cal.App.4th 144, 161-162.)

For

purposes of a demurrer, the complaint sufficiently articulates emotional distress, and therefore a basis of exemption. [Comp., ¶¶ 13-24.] The qualitative challenges to the emotional distress claim itself are also beyond the scope of the demurrer. Any factual distinctions are both beyond the scope of the demurrer and otherwise resolved in further discovery. “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khouri v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 616; Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139 “[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend.]

The demurrer is overruled.

15th Cause of Action: Negligent Training, Supervision, and Retention

Live

Nation challenges the subject cause of action on grounds that negligence based claims against the employer are subsumed with Workers’ Compensation preemption.

Plaintiff appears to concede to the merits of the position regarding insufficiency of facts, but requests leave to amend.

The agreement as to the scope of the provision arises from court rulings limiting recovery from wrongful termination to contract, and barring tort recovery. (*Hine v. Dittrich* (1991) 228 Cal.App.3d 59, 63-64.) Plaintiff concedes as much, and requests leave in order to better distinguish the negligence based claims during time at work prior to termination.

The demurrer is sustained with leave to amend.

IV. CONCLUSION

The demurrer to the fifteenth cause of action for Negligent Training, Supervision, and Retention is sustained with 20 days leave amend. Plaintiff may NOT add any new causes of action. (*Harris v. Wachovia Mortgage, FSB* (2010) 185 Cal.App.4th 1018, 1023.) Any new causes of action added without leave of court may be subject to a motion to strike. Material changes to the operative complaint seeking to alter the basis of the claim may also be subject to a demurrer under the sham pleading standard. The purpose of granting leave to amend is to better establish any potential exemption between negligence based causes of action from any damages arising from the termination itself. Live Nation insufficiently establishes the inability of Plaintiff to pled the subject cause of action exemption after first review of the complaint. (*Youngman v. Nevada Irr. Dist.* (1969) 70 Cal.2d 240, 245.)

The demurrer to the tenth, eleventh, twelfth, thirteenth, and fourteenth causes of action is overruled.

If Plaintiff instead elects to not file a first amended complaint, Defendants shall answer the remaining causes of action of the complaint within 10 days of the lapse of the 20-day amendment deadline (e.g. 30 days from the date of this order).

"In response to a demurrer and prior to the case being at issue, a complaint or cross-complaint shall not be amended more than three times, absent an offer to the trial court as to such

additional facts to be pleaded that there is a reasonable possibility the defect can be cured to state a cause of action. The three-amendment limit shall not include an amendment made without leave of the court pursuant to Section 472, provided the amendment is made before a demurrer to the original complaint or cross-complaint is filed.”

(Code Civ. Proc., § 430.41, subd. (e)(1).)

The court will not consider any request for “sanctions.” Plaintiff may proceed with a separately filed motion.

Dated: July 30, 2026

Brock T. Hammond

Judge of the Superior Court